Sec. 14, N½;
Sec. 16, N½ and SE¼;
Sec. 22, SW¼;
Sec. 26, E½NE¼ and NE¼SE¼;
Sec. 28, NE¼, N½SE¼, and SE¼SE¼.

The areas described aggregate approximately 3347.88 acres.

The lands are sub-marginal for agricultural development. They contain no water or timber, and are chiefly valuable for grazing. The lands will not be subject to occupancy or disposition until they have been classified. It is unlikely that they will be classified as suitable for homestead, desert land, or for small tract use.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Reno, Nevada, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land and Survey Office, Reno, Nevada.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MARCH 4, 1952.

[F. R. Doc. 52-2693; Filed, Mar. 7, 1952; 8:45 a. m.]

[Public Land Order 810]

NEW MEXICO

REVOCATION OF EXECUTIVE ORDERS NO. 5909 OF AUGUST 22, 1932, AND NO. 7723 OF OCTOBER 8, 1937, WITHDRAWING PUBLIC LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Orders Nos. 5909 of August 22, 1932, and 7723 of October 8, 1937, temporarily withdrawing public lands for classification as to their suitability for wildlife refuge purposes are hereby revoked. Executive Order No. 5909 was superseded by Executive Order No. 7724 which established the Bitter Lake Migratory Waterfowl Refuge, as to all lands except the NE¼ sec. 8, T. 10 S., R. 25 E., N. M. P. M., New Mexico, which is patented.

The public lands released from withdrawal by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 9 S., R. 25 E.,
Sec. 11, E½NE¼, NE¼SE¼, and S½SE¼;
Sec. 14, E½NE¼, S½NW¼, N½SW¼, and E½SE¼;
Sec. 15, E½NE¼, SW¼, and N½SE¼;
Sec. 21, E½SE¼;
Sec. 22, SW¼NE¼, W½, and NW¼SE¼;
Sec. 23, NE¼, S½NW¼, and SW¼;
Sec. 26, N½NW¼;
Sec. 27, N½NW¼;
Sec. 28, N½NE¼.

The areas described aggregate 1,960 acres.

The lands are primarily suitable for grazing purposes. They will not be subject to occupancy or disposition until they have been classified. It is unlikely that the lands will be classified as suitable for homestead, desert land, or small tract use.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly

the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Bureau of Land Management, Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land and Survey Office, Santa Fe, New Mexico.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MARCH 4, 1952.

[F. R. Doc. 52-2692; Filed, Mar. 7, 1952; 8:45 a. m.]

TITLE 44—PUBLIC PROPERTY AND WORKS

Chapter VIII—Office of Territories, Department of the Interior

PART 801—VIRGIN ISLANDS PUBLIC WORKS

REVOCATION

MARCH 4, 1952.

Part 801 of Chapter VIII of Title 44 of the Code of Federal Regulations (11 F. R. 9637, 13 F. R. 7355, 15 F. R. 1346, 16 F. R. 5022) is rescinded.

(Sec. 10, 58 Stat. 830)

OSCAR L. CHAPMAN,
Secretary of the Interior.

[F. R. Doc. 52-2695; Filed, Mar. 7, 1952; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 729]

PEANUTS

NOTICE OF INTENTION TO FORMULATE AND ISSUE REGULATIONS GOVERNING DISTRIBUTION OF PROCEEDS RECEIVED BY COMMODITY CREDIT CORPORATION FROM SALE OF EXCESS VALENCIA TYPE PEANUTS FOR CLEANING AND SHELLING

Pursuant to the applicable provisions of the Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1301-1376), the Secretary of Agriculture is preparing to formulate regulations governing the distribution of proceeds realized from the sale of Valencia type excess peanuts of the 1951 crop which were delivered to or marketed through agencies designated by the Secretary. Payments are proposed to be made to producers who delivered such type of excess peanuts to designated agencies, in accordance with the following pertinent provisions of section 359 (g) of the act.

If the total acreage of peanuts picked or threshed on the farm does not exceed the total acreage of peanuts picked or threshed on the farm in 1947 or 1948, if no peanuts were harvested on the farm in 1947, payment of the marketing penalty as provided in subsection (a) will not be required on any excess peanuts which are delivered to or marketed through an agency or agencies designated each year by the Secretary. * * * For all peanuts so delivered to a designated agency under this subsection, producers shall be paid for the portion of the lot constituting excess peanuts, the prevailing market value thereof for crushing for oil (but not more than the price received by such agency from the sale of such peanuts), less the estimated cost of storing, handling, and selling such peanuts: *Provided*, If the Secretary determines that the supply of any type of peanuts is insufficient to meet the demand for cleaning and shelling purposes at prices at which the Commodity Credit Corporation may sell peanuts owned or controlled by it for such purposes, the Secretary shall permit the sale, for cleaning and shelling, of the excess peanuts of such type so delivered. Such sales shall be in quantities necessary to meet such demand and at prices not less than those at which the Commodity Credit Corporation may sell peanuts owned or controlled by it for cleaning and shelling. The proceeds received from the sale of such peanuts of such type for cleaning and shelling shall, after deduction of the price paid to producers and other costs incurred in connection therewith, including estimated cost of proration, be prorated proportionately among all of the producers delivering excess peanuts of such type to designated agencies under this section. * * *

Valencia type peanuts of the 1951 crop were declared to be in short supply on January 5, 1952 (17 F. R. 324).

Commodity Credit Corporation was designated by the Secretary of Agriculture as the agency to which excess peanuts could be delivered pursuant to section 359 (g) of the act, with authority to utilize shellers, crushers, warehousemen, and other persons as its agents to receive, handle, and dispose of such excess peanuts (16 F. R. 5672).

It is proposed that the regulations governing the distribution of proceeds from the sale for cleaning and shelling of excess Valencia type peanuts will include the following principal points:

1. The final date for deliveries by producers of excess Valencia type peanuts to Commodity Credit Corporation in order for such producers to share in the distribution of sales proceeds on the basis of such deliveries, will be May 15, 1952.

2. The total quantity of excess Valencia type peanuts delivered to Commodity Credit Corporation, and the quantity delivered from each farm, will be determined from sales memoranda covering excess oil marketings of Valencia type peanuts pursuant to the Marketing Quota Regulations for the 1951 crop of peanuts (16 F. R. 5672) and such quantities will not include any peanuts acquired by seed shellers in connection with shelling producers' peanuts for seed or any high-moisture, high-damage peanuts acquired by shellers or crushers under § 646.339 of the regulations for the 1951 crop peanut price support program, as amended (16 F. R. 10692).

3. The total amount of money to be prorated among producers of Valencia type peanuts will be determined by deducting from the total proceeds received by Commodity Credit Corporation from the sale of Valencia type excess peanuts for cleaning and shelling, the estimated cost of proration, the total of the amounts paid to producers of Valencia type peanuts delivered to Commodity Credit Corporation, and the estimated cost of storing, handling, and selling excess peanuts of such type.

4. The rate of payment to be made to producers of Valencia type peanuts will be determined by dividing the total amount to be prorated for Valencia type peanuts by the total pounds of Valencia type excess peanuts delivered to Commodity Credit Corporation without regard to grade or quality of the peanuts so delivered.

5. Where more than one producer is interested in Valencia type excess peanuts produced on a farm and delivered to Commodity Credit Corporation, each producer's poundage share will be determined by multiplying the producer's percentage share (determined from the 1951 Performance Report Form PMA-578 for the farm) by the total pounds of Valencia type excess peanuts produced on the farm and delivered to Commodity Credit Corporation, unless such percentage or poundage share is redetermined by the PMA county committee on the basis of evidence submitted by producers on the farm

6. Each producer will be required to sign an application for payment certifying to the correctness of his percentage share and poundage share.

7. Any amount payable to a producer will be subject to set-off for any indebtedness of the producer to the United States or any agency thereof.

Prior to issuance of the regulations, consideration will be given to any data, views, and recommendations relating thereto which are submitted in writing to the Director, Fats and Oils Branch, Production and Marketing Administration, United States Department of Agriculture, Washington 25, D. C. All submissions must be postmarked not later than 10 days from the date of publication of this notice in the FEDERAL REGISTER.